

The goal is to meet the service standard 80% of the time.

The commitment to issue decisions for hearings which take longer than 3 days within 180 days was met only 36% of the time. Because hearings that took more than 3 days to complete accounted for only 5% of hearings, the low compliance has limited impact on the HRTO's overall performance. Through recruitment and training, the HRTO is working to improve in this area so that all parties can have confidence in the system.

Hearings and Mediations	% of time service standard is met	Average number of days
The first mediation date offered to parties will be scheduled to take place within 150 calendar days from the date the parties agree to mediation.	97%	90
The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing.	59%	161

Decisions	% of time service standard is met	Average number of days
Decisions for hearings which take 3 days or less will be issued within 90 calendar days.	76%	86
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days.	36%	300

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Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB):

- resolves disputes between landlords and tenants
- resolves eviction applications from non-profit housing co-operatives
- provides information to landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* (RTA)
- provides information about LTB's practices and procedures

Legislative Authority

The Landlord and Tenant Board is established under the [Residential Tenancies Act \(RTA\)](#).

Operational Highlights

Improvements to How the Notice of Hearing is Served

In July 2015, LTB started serving the Notice of Hearing and the application to both the applicant and the respondent. Previously, the applicant had to serve these documents on the respondent and then submit a certificate of service to the LTB.

In March 2016, the LTB improved the process further based on feedback from users.

While most people continued to receive their Notice of Hearing package in the mail, two changes were made:

1. People who file an application in-person at an LTB office can receive their package at the counter instead of by mail.
2. People who file three or more applications at the same time ("bulk filing") can come into the LTB office and pick up the Notice of Hearing packages.

Landlords who apply to increase the rent above the guideline or to vary the amount of a rent reduction and non-profit housing co-operatives who apply to evict a tenant were not affected by these changes. They continue to serve the Notice of Hearing and the application.

Updates to Forms

In April, the LTB released updated versions of forms, notices and the accompanying instructions for completing them. Formatting changes made the forms more accessible and easier to understand. Many of the changes were made as a result of suggestions by the public, LTB members and LTB staff.

Orders on the Day of the Hearing

Starting in October 2015, some parties began leaving their hearing with an order in hand at LTB's Southwest, Central and Toronto North offices. LTB members (adjudicators) at these locations are testing a new process for issuing two types of orders in the hearing room:

1. Consent orders on applications for eviction based on arrears of rent, where the parties have agreed to a repayment schedule which allows the tenant to remain in the unit.
2. Orders where the application has been abandoned, withdrawn or discontinued.

The members write the orders by hand using a template.

Previously, the member would write the order after the hearing and then staff would mail copies to the parties, a process which can take several days.

From October 2015 to the end of March 2016, LTB members issued 668 orders in the hearing room. Feedback has been very positive and, as a next step, the LTB plans to provide portable printers so that members can complete and print the orders from a laptop instead of by hand.

Same day orders is one way the LTB is improving access to fair and timely dispute resolution. The LTB intends to roll out this initiative province-wide next fiscal year.

Case Management Hearings

The LTB continues to conduct case management hearings (CMHs) for Applications about Tenant Rights (T2) and Tenant Applications about Maintenance (T6) at its Toronto South and Southern (Hamilton) offices. In August 2015, consultation meetings were held with staff and parties who have participated in CMHs at both offices. An internal working group at the LTB is using feedback from the meetings to explore ways to improve and expand the process.

Improved Tool to "Check File Status" Online

In October 2015, the LTB launched a new-and-improved version of its "Check File Status" tool. By entering the postal code of the rental property and the file number, landlords and tenants can find out the date, time and location of their next hearing and find out if an order has been issued, without having to call the board. From October 2015 – March 2016, the page was visited nearly 38,000 times and was the 7th most popular page on the LTB website.

LTB e-File

On July 13 2015, the LTB launched e-File, allowing landlords and tenants across Ontario to file the most common LTB applications online, anytime from anywhere.

The e-File tool guides users through a series of steps, and then generates an application. Landlords and tenants can also pay the filing fees online and schedule the first available hearing date.

Four common application types can be e-Filed – two for landlords and two for tenants, which together account for 80% of all applications received at the LTB.

The two applications that tenants can file online are:

- T2: Application about Tenant Rights
- T6: Tenant Application about Maintenance

The two applications that landlords can file online are:

- L1: Application to Evict a Tenant for Non-payment of Rent and to Collect Rent the Tenant Owes
- L2: Application to End a Tenancy and Evict a Tenant

From the launch of e-File on July 13, 2015 to March 31, 2016, the LTB received 11,788 applications online.

- 75% (8,837) were L1 applications
- 12% (1,373) were L2 applications
- 10% (1,221) were T2 applications
- 3% (357) were T6 applications

23% of all L1, L2, T2 and T6 applications filed with the LTB during that time were filed using e-File.

- 24.4% of all L1 applications
- 21.5% of all L2 applications
- 41% of all T2 applications
- 28% of all T6 applications

69% of e-File applications were scheduled for a hearing date online: 75% of landlord applications and 26.5% of tenant applications.

19.2% (702) of e-File applications were filed outside of business hours.

Paper applications can still be mailed, faxed or dropped off at one of the eight LTB offices or personally delivered

to more than 60 ServiceOntario locations across the province.

Email for Case Inquiries at the Southwestern and Toronto South Offices

In April 2015, the Southwestern and Toronto South offices began accepting case-specific inquiries by email. LTB users dealing with these offices are given an email address to submit information or ask questions about their case.

By November, this service was being offered to applicants and respondents of all eight LTB offices. Each office receives between 10 and 40 inquiries per week. Parties use email to request a summons, provide unavailable dates for adjourned matters, make submissions, and ask questions about the application and hearing process.

For general inquiries about the LTB process or about a tenant or landlord's rights and obligations, people are asked to visit the LTB website or call the call centre.

French-English Lexicon

The LTB developed a French-English lexicon based on the *Residential Tenancies Act*. The lexicon is a quick reference for bilingual staff and members so that they are confident they are always using the right terminology.

Statistics

In 2015-16, the LTB received 80,214 applications. This total includes landlord, tenant and co-op applications. This is an increase of 0.59% or 474 applications compared to 2014-2015.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 61% were to terminate a tenancy because of non-payment of rent.

The number of unresolved applications at the LTB rose to 11,946, an increase over previous years. There are two major factors which contributed to this change:

1. While the number of applications to terminate a tenancy for non-payment of rent remains high, the volume has been declining slightly over the last three years. By contrast, the number of tenant applications, and eviction applications for other reasons, has been increasing. These types of applications are more complex and take longer to resolve, which contributed to the increase in unresolved applications.
2. The LTB has seen a significant turnover in members (adjudicators) this year. Seventeen percent of full-time members left the board as a result of retirements, resignations and members moving to new opportunities before reaching their 10-year cap (In 2006 Ontario limited appointments to ten years). The lengthy appointment process and the time new members need to get up to speed before they can work at full capacity, contributed to the increase in unresolved applications.

Mediations

When both parties involved in an application are interested in working together to resolve the issues in dispute, the LTB provides a mediator. In 2015-2016, approximately 34% of all applications where both parties attended the hearing were resolved through mediated agreements and/or consent orders arrived at during mediation. By comparison, about 70% of the co-op applications that were contested were resolved by mediation during the case management hearing.

A mediated agreement is an agreement between the parties. A consent order is an LTB order based on terms that the parties agree to and is enforceable by the courts.

Reviews and Appeals

A party can ask for a review of an LTB decision if a "serious error" has been made in the order.

In 2015-16, the LTB received 2,891 requests for review, which is 3.62% of total applications received. Of the review requests received, 1,754 were denied after a preliminary review. The other 1,137 were sent to hearing to determine whether there was a serious error.

Table 1: Call Centre

	2015-16	2014-15	2013-14
Calls handled	299,143	286,869	293,351
Average time per call	04:45	05:10	05:08
Average wait time in the queue	05:06	06:46	06:44

Table 2: All Applications Received, Resolved and Outstanding

	2015-16	2014-15	2013-14
Applications Received*	80,214	79,740	81,748
Applications Resolved	78,175	77,148	82,126
Outstanding at end of fiscal year**	11,946	10,286	8,497

* The 2015-16 totals include non-profit co-operative housing eviction applications.

** As one application can result in more than one resolution, the number of applications outstanding at the end of the fiscal year does not necessarily equal the number from the previous year plus receipts, less the number resolved.

Table 3: Landlord/Tenant Applications by Method of Resolution

Resolution Type	2015-16	2014-15	2013-14
Abandoned ¹	2,673	2,668	2,609
Resolved by Mediation ²	11,541	11,926	13,054
Resolved at Hearing ³	48,533	48,107	51,845
Resolved without Hearing ⁴	4,397	4,402	4,851
Review Denied	729	675	596
Withdrawn	7,487	7,369	7,223
Other ⁵	2,413	2,001	1,948
Total	77,773	77,148	82,126

¹ ordered by hearing abandoned

² mediated; ordered by hearing mediated

³ ordered by hearing contested or uncontested; ordered by review

⁴ ordered ex parte; ordered by section 206 agreement

⁵ discontinued; order voided; ordered amended; amendment denied

Table 4: Co-op Eviction Applications by Method of Resolution

Resolution Type	2015-16	June 1, 2014 - March 31, 2015
No Hearing ¹	91	22
Case Management Hearing Only	236	110
Merit Hearing Only	10	10
Both Case Management Hearing and Merit Hearing	65	16
Total	402	158

¹ application withdrawn/discontinued; parties settled the issues on their own

Table 5: Landlord and Tenant Applications Received by Region

Head Office*	Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total
498	8,793	8,395	4,131	10,913	14,271	10,521	11,557	10,663	79,742

* When the system is unable to match the postal code to a region in an e-Filed application, it is assigned to "Head Office".

Table 6: Co-op Applications Received by Region

Central	East	North	South	South west	Toronto East	Toronto North	Toronto South	Total
39	22	17	65	102	121	48	58	472

Table 7: Landlord Applications Received by Type

Case Type	Application Description	2015-16	2014-15	2013-14
A1	Determine Whether the Act Applies	67 (0.1%)	55 (0.1%)	69 (0.1%)
A2	Sublet or Assignment	234 (0.3%)	263 (0.4%)	241 (0.3%)
A3	Combined Application (usually includes an L1)	4,050 (5.7%)	3,986 (5.6%)	4,209 (5.7%)
A4	Vary Rent Reduction Amount	76 (0.1%)	135 (0.2%)	134 (0.2%)

L1	Terminate & Evict for Non-Payment of Rent	48,940 (68.4%)	49,991 (70.0%)	52,832 (71.2%)
L2	Terminate for Other Reasons & Evict	8,876 (12.4%)	7,983 (11.2%)	7,132 (9.9%)
L3	Termination - Tenant Gave Notice or Agreed	1,338 (1.9%)	1,208 (1.7%)	1,179 (1.6%)
L4	Terminate the Tenancy - Failed Settlement	5,559 (7.8%)	5,632 (7.9%)	5,955 (8.0%)
L5	Rent Increase Above the Guideline	433 (0.6%)	548 (0.8%)	438 (0.6%)
L6	Review of Provincial Work Order	15 (0.0%)	8 (0.0%)	3 (0.0%)
L7	Transfer Tenant to Care Home	6 (0.0%)	0 (0.0%)	4 (0.0%)
L8	Tenant Changed Locks	28 (0.0%)	31 (0.0%)	21 (0.0%)
L9	Application to Collect Rent	1,892 (2.6%)	1,735 (2.4%)	1,800 (2.4%)
	Total	71,514	71,575	74,197

Table 8: Tenant Applications Received by Type

Case Type	Application Description	2015-16	2014-15	2013-14
A1	Determine Whether the Act Applies	64 (0.8%)	59 (0.7%)	23 (0.3%)
A2	Sublet or Assignment	68 (0.8%)	55 (0.7%)	46 (0.6%)
A3	Combined Application	1,586 (19.3%)	1,921 (24.1%)	1,680 (22.3%)
A4	Vary Rent Reduction Amount	0 (0.0%)	0 (0.0%)	1 (0.0%)
T1	Rent Rebate (e.g. illegal rent)	663 (8.1%)	716 (9.0%)	663 (8.8%)
T2	Tenant Rights	3,922 (47.7%)	3,441 (43.2%)	3,441 (43.2%)
T3	Rent Reduction	67 (0.8%)	69 (0.9%)	51 (0.7%)
T4	Failed Rent Increase Above Guideline	0 (0.0%)	1 (0.0%)	4 (0.0%)
T5	Bad Faith Notice of Termination	174 (2.1%)	170 (2.1%)	156 (2.1%)
T6	Maintenance	1,661 (20.2%)	1,516 (19.1%)	1,318 (17.5%)
T7	Suite Meters	23 (0.3%)	9 (0.0%)	9 (0.0%)
	Total	8,228	7,957	7,551

Table 9: Co-op Applications Received by Type

Case Type	Application Description	2015-16	June 1, 2014 - March 31, 2015
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	252 (53.3%)	132 (63.4%)
C1/2	Combined C1 and C2 applications	74 (15.6%)	32 (15.3%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	73 (15.4%)	23 (11%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	5 (1%)	7 (3.4%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a Settlement/Order	68 (14.4%)	14 (7%)
	Total	472	208

Service Standards

The goal is to meet the service standard 80% of the time.

Standard	% of time service standard is met	Average number of days
Applications will be scheduled for a hearing within 25 business days	69%	23.3
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	83%	4.6

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Social Benefits Tribunal